

# Rajendra Kumar Gupta v. DVVNL

High Court of Judicature at Allahabad · Division Bench · 30 March 2011 · Writ-C No. 18315 of 2011 · Writ-C No. 18315 of 2011 · **Writ disposed of; petitioner relegated to Section 127 appeal.**

## HEADNOTE

A writ against a Section 126(3) assessment involving disputed facts—including want of hearing, unauthorised use versus a defective-meter case under Supply Code clause 5.6(c)(iii), and independent meter testing—is disposed of by relegating the consumer to a Section 127 appeal. Alternative remedy depends on the circumstances of each case. The appellate authority has jurisdiction, must hear all objections with a reasoned order, and the writ papers may be treated as part of the appeal.

## FACTUAL SUMMARY

Rajendra Kumar Gupta, a DVVNL consumer, filed a writ against an assessment under Section 126(3) of the Electricity Act, 2003. He alleged he was given no hearing, that the case was neither tampering nor unauthorised use, and that the licensee first proposed independent meter testing then refused because the seal was broken. He relied on an earlier Division Bench order in his Writ Petition No. 54476 of 2010 (29 September 2010) and on authorities treating defective-meter notices under Supply Code clause 5.6(c)(iii).

## HOLDING-UNITS

### HOLDING-UNIT · EA2003::127

writ vs s.127 appeal from s.126(3) assessment

#### HOLDING

Where a consumer challenges a Section 126(3) assessment on disputed facts—no hearing; whether the case is unauthorised use or a defective-meter dispute under Supply Code clause 5.6(c)(iii); whether the meter should have been independently tested—the writ is not decided on merits. Availability of an alternative remedy depends on the circumstances of each case; those factual disputes are to be raised in a Section 127 appeal. The appellate authority does not lack jurisdiction. The petitioner is directed to appeal within seven days of obtaining a certified copy; if appealed, the authority shall hear all objections with a reasoned order preferably within one month, treating the writ petition and annexures as part of the appeal, and decide on merits. ¶ 1-3

**FLAG** Court cites s.126(3) as Electricity Act, 2003 and also as 2006, s.127 as Electricity Act, 2005, and refers to the 'U.P. Electricity Act, 2005'.

## PRINCIPLE TAGS

**relegate-to-statutory-remedy** A writ against a Section 126(3) assessment involving disputed facts—including want of hearing, unauthorised use versus a defective-meter case under Supply Code clause 5.6(c)(iii), and independent meter testing—is disposed of by relegating the consumer to a Section 127 appeal.. ¶ 1-3

**s126-procedural-strictness-notice-and-hearing** A writ against a Section 126(3) assessment involving disputed facts—including want of hearing, unauthorised use versus a defective-meter case under Supply Code clause 5.6(c)(iii), and independent meter testing—is disposed of by relegating the consumer to a Section 127 appeal.. ¶ 1-3

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER THE ASSESSMENT WAS OF UNAUTHORISED USE OR TAMPERING UNDER S.126, OR A DEFECTIVE-METER CASE UNDER CLAUSE 5.6(C)(III)**

¶ 2-3

**NOT DECIDED — WHETHER THE LICENSEE WAS OBLIGED TO SEND THE METER FOR INDEPENDENT TESTING DESPITE A BROKEN SEAL**

TABLE OF AUTHORITIES

| AUTHORITY                                                                                 | PROPOSITION | HOW TREATED | CITED BY | TREATMENT |
|-------------------------------------------------------------------------------------------|-------------|-------------|----------|-----------|
| <i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i><br>2009 (1) ADJ 430 (DB) |             |             | 2        | Referred  |
| <i>Ashok Kumar v. State of U.P.</i><br>2008 (6) ADJ 660 (DB)                              |             |             | 2        | Referred  |
| 2010 (6) ADJ 315 (DB)                                                                     |             |             | 2        | Referred  |